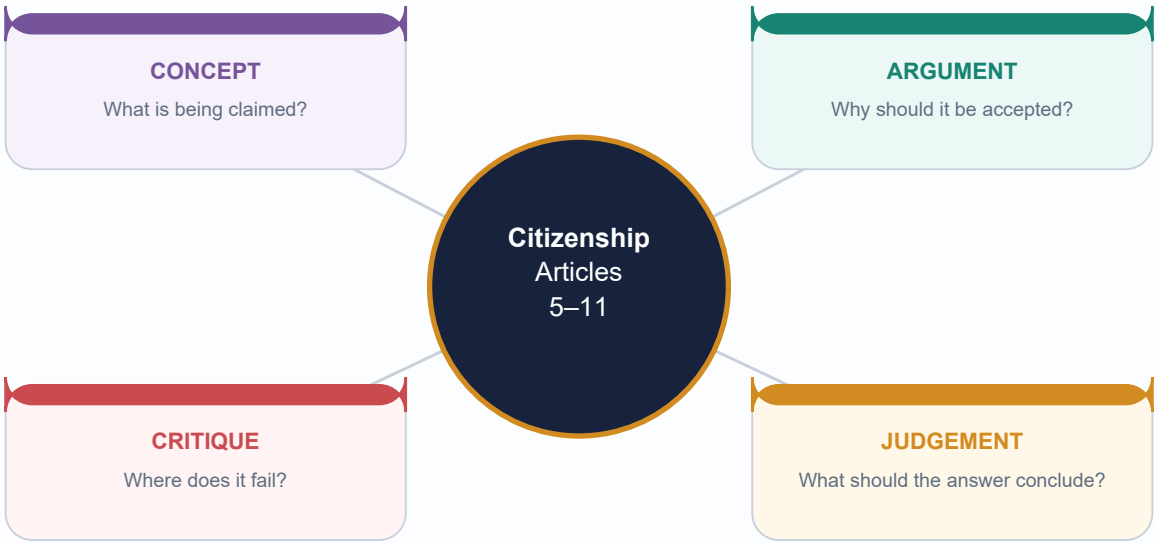
UPSC INDIAN POLITY

Citizenship (Articles 5–11) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: Citizenship.md + 06_Citizenship.md
Learning cards: 36



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Basic (foundation) · GS Paper: GS-II	**Dimension 2** Grounded in: Laxmikant Ch. 6. □ = from book · □□ = update · □ = current affairs.
Dimension 3 Advanced: optional deeper detail in advanced/06Citizenship.md — not required for any mark.	

STATIC THEORY

- **Grounded in:** Laxmikant Ch. 6. □ = from book · □□ = update · □ = current affairs.

- *Advanced: optional deeper detail in advanced/06_Citizenship.md — not required for any mark.*

MUST-KNOW FACTS

1. Grounded in: Laxmikant Ch. 6. = from book · □□ = update · □ = current affairs.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
□ Articles	**5–11, Part II**
□ Constitution covers	only **who were citizens on 26 Jan 1950**
□ Rest handled by	**Citizenship Act, 1955** (amended often)
□ Type	**Single citizenship** (like Canada) — no state citizenship
□ Dual citizenship	India does not recognise it under the Citizenship Act; **Art 9** addresses voluntary foreign citizenship at commencement. OCI is NOT dual citizenship

MAINS ANGLE

STUDY LINK
Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

 Constitution gives **no permanent/elaborate** rules — it just names the four categories of people who were citizens at commencement and hands the rest to **Parliament (Art 11)**, which passed the **Citizenship Act 1955**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Constitution gives **no permanent/elaborate** rules — it just names the four categories of people who were citizens at commencement and hands the rest to **Parliament (Art 11)**, which passed the **Citizenship Act 1955**.

MAINS ANGLE

STUDY LINK
Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Acquisition — 5 ways

GS-II Indian Polity

INTRO & ORIGIN

 Mnemonic: "BeD RaIN" = **B**irth, **D**escent, **R**egistration, **N**aturalisation,

Foundation learning layer: concepts → constitutional detail → UPSC application.

ACQUISITION — 5 WAYS: RECALL MAP

Acquisition — 5 ways

V

Dimension 1 Mnemonic: "BeD RaIN" = Birth, Descent, Registration, Naturalisation,	**Dimension 2** Incorporation of territory.
Dimension 3 Birth rule tightened over time: 1950-1987 (any parent's nationality OK) → 1987 (either parent a citizen) → 2004 (both parents, or one citizen + othe	

STATIC THEORY

- **I**ncorporation of territory.

- **Birth** rule tightened over time: 1950-1987 (any parent's nationality OK) → 1987 (either parent a citizen) → **2004 (both parents, or one citizen + other not an illegal migrant)**.

MEMORY HOOK

Mnemonic: "BeD RaIN" = Birth, Descent, Registration, Naturalisation,

MUST-KNOW FACTS

1. Birth rule tightened over time: 1950-1987 (any parent's nationality OK) → 1987 (either parent a citizen) → **2004 (both parents, or one citizen + other not an illegal migrant)**.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Acquisition — 5 ways

HIGH

Foundation · Loss — 3 ways

GS-II Indian Polity

INTRO & ORIGIN

 Mnemonic: "R-T-D" = **R**enunciation (voluntary), **T**ermination (took foreign

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- citizenship), **D**eprivation (Centre cancels — fraud/disloyalty).

MEMORY HOOK

Mnemonic: "R-T-D" = Renunciation (voluntary), Termination (took foreign

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Loss — 3 ways

HIGH

Foundation · Single citizenship — exceptions

GS-II Indian Polity

INTRO & ORIGIN

 Uniform rights everywhere, **except**: (1) Art **16(3)** permits Parliament to prescribe residence requirements for specified public employment; (2) state concessions to residents (fees); (3) Art 19 curbs in **tribal areas**; (4) *till 2019* J&K permanent residents under **Art 35A** (abolished 2019).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Uniform rights everywhere, **except**: (1) Art **16(3)** permits Parliament to prescribe residence requirements for specified public employment; (2) state concessions to residents (fees); (3) Art 19 curbs in **tribal areas**; (4) *till 2019* J&K permanent residents under **Art 35A** (abolished 2019).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Single citizenship — exceptions

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

 Articles **15, 16, 19 and 29** are textually citizen-specific; Article **30** speaks of minorities rather than citizens. Voting and specified offices additionally require citizenship under their own provisions.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 Articles 15, 16, 19 and 29 are textually citizen-specific; Article 30 speaks of minorities rather than citizens. Voting and specified offices additi	**Dimension 2** Article 22(3)(a) excludes enemy aliens from clauses 22(1) and 22(2); avoid saying every protection in Article 22 is unavailable.
Dimension 3 OCI cardholders cannot vote, be MP/MLA, President/VP, or SC/HC judge.	**Dimension 4** Assam Accord / NRC cut-off = 24 March 1971 (Citizenship Amdt Act 1985).

STATIC THEORY

- Article **22(3)(a)** excludes enemy aliens from clauses **22(1) and 22(2)**; avoid saying every protection in Article 22 is unavailable.

- **OCI** cardholders **cannot** vote, be MP/MLA, President/VP, or SC/HC judge.

- **Assam Accord / NRC cut-off = 24 March 1971** (Citizenship Amdt Act 1985).

- **L.M. Singhvi Committee** → led to OCI (2003); PIO+OCI merged in **2015**.

MUST-KNOW FACTS

1. Articles **15, 16, 19 and 29** are textually citizen-specific; Article **30** speaks of minorities rather than citizens. Voting and specified offices additionally require citizenship under their own provisions.

2. Article **22(3)(a)** excludes enemy aliens from clauses **22(1) and 22(2)**; avoid saying every protection in Article 22 is unavailable.

3. OCI cardholders **cannot** vote, be MP/MLA, President/VP, or SC/HC judge.

4. Assam Accord / NRC cut-off = 24 March 1971 (Citizenship Amdt Act 1985).

5. L.M. Singhvi Committee → led to OCI (2003); PIO+OCI merged in **2015**.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link — CAA 2019 □

GS-II Indian Polity

NEWS TRIGGER

□ □ **Citizenship (Amendment) Act 2019:** creates a facilitated application route for **6 communities (Hindu, Sikh, Buddhist, Jain, Parsi, Christian)** from **Pakistan, Bangladesh, Afghanistan** who entered India **by 31 Dec 2014**. □ **Rules notified March 2024; first certificates issued May 2024.** □□ Challenged in SC on Art 14 grounds. It does **not automatically confer citizenship**; statutory eligibility, application and scrutiny remain necessary. □□ Acquisition and loss detail, OCI, Art 35A and the CAA analysis are all held **in this file**. *Advanced: optional deeper detail in advanced/06_Citizenship.md — not required for any mark.*

INTRO & ORIGIN

Exam-ready treatment of □ Current link — CAA 2019 □.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → □ Current link — CAA 2019 □

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

*Purpose: this topic is asked on **single citizenship and its limits**, on the **CAA 2019 secularism debate**, and on the **citizenship / domicile / residence** distinction. This section supplies Arts 5–11, the statutory modes under the 1955 Act, the exceptions with their exact Articles, and OCI's statutory character so the file is self-sufficient.*

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 8.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Single citizenship and its limits	"unity vs regional aspiration", "domicile-based jobs"	Single citizenship rationale → exceptions (Arts 16(3), 19(5), 371, ex-35A) → verdict
CAA 2019 and secularism	"religion-based fast-track", "Art 14"	Scope → criticism (Art 14) → defence (reasonable classification) → status caution
Constitution vs statute	"how does the Constitution deal with citizenship?"	Arts 5–11 (only 1950) → Art 11 delegation → Citizenship Act 1955
Citizenship / domicile / residence	"difference between…"	Three-term distinction → political rights vs residence benefits
Diaspora / OCI	"soft power without political rights"	OCI statutory, not dual citizenship → rights denied → 2015 merger

MAINS ANGLE

STUDY LINK
Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.1 Demand and directive map

HIGH

Foundation · 8.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

India chose single citizenship to build fraternity in a plural federation, yet it tolerates residence- and region-based distinctions — through Articles 16(3), 19(5) and 371 — so that national unity does not erase local protection.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.2 QUALIFIED THESIS OPTIONS: RECALL MAP

8.2 Qualified thesis options

V

Dimension 1 India chose single citizenship to build fraternity in a plural federation, yet it tolerates residence- and region-based distinctions — through Article	**Dimension 2** The CAA 2019 debate turns on a single question: whether fast-tracking six named communities from three neighbours is a reasonable classification of pe
Dimension 3 Citizenship, domicile and residence are three different statuses: only citizenship confers political rights, and conflating it with residence is the c	**Dimension 4** OCI is diaspora engagement without enfranchisement: a statutory card, not a second citizenship, while Article 9 addresses the commencement routes and

STATIC THEORY

- The CAA 2019 debate turns on a single question: whether fast-tracking six named communities from three neighbours is a reasonable classification of persecuted minorities or an impermissible religious test under Article 14 — a question still before the Supreme Court.

- Citizenship, domicile and residence are three different statuses: only citizenship confers political rights, and conflating it with residence is the commonest error in both Prelims options and public debate.

- OCI is diaspora engagement without enfranchisement: a statutory card, not a second citizenship, while Article 9 addresses the commencement routes and Section 9 of the Citizenship Act controls later voluntary foreign citizenship.

MAINS ANGLE

STUDY LINK
Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.2 Qualified thesis options

HIGH

Foundation · 8.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → single citizenship + 2 exceptions → one caution → verdict	Arts 5–11 + 2 exception Articles
15	Thesis → constitutional scheme → statutory modes → exceptions → CAA/OCI hook → verdict	5–6 units
20	Thesis → Arts 5–11 → acquisition/loss → single citizenship & exceptions → CAA debate → domicile distinction → graded verdict	6–8 units

MAINS ANGLE

STUDY LINK
Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.3 Mark-scaled structures

HIGH

Foundation · 8.4 Bank A — Constitutional scheme (Arts 5–11) and statutory modes

GS-II Indian Polity

INTRO & ORIGIN

Claim: the Constitution fixes only who were citizens in 1950 and delegates the rest. **Evidence:** □ **Arts 5–11 (Part II)** identify the four classes who became citizens at **commencement (26 Jan 1950)**; □ **Art 9** bars **dual citizenship** (voluntary foreign citizenship = not an Indian citizen); □ **Art 11** empowers **Parliament** over all citizenship matters → the **Citizenship Act 1955**. **Significance:** □□ citizenship is therefore mainly **statutory, not a Fundamental Right**. **Caution:** □ do not call citizenship a Fundamental Right.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **Claim:** acquisition and loss are statutory and time-conditioned. **Evidence:** □ acquisition by **Birth, Descent, Registration, Naturalisation, Incorporation of territory** (□ "BeD RaIN"); □ birth rule tightened — 1950–1987 any parent; from **1987** either parent a citizen; from **2004** both parents (or one citizen + other not an illegal migrant); □ naturalisation needs **12 months' continuous residence + 11 of the preceding 14 years**. **Significance:** □□ "born in India = citizen" is true only for **1950–1987**. **Caution:** □ loss is by **Renunciation** (voluntary), **Termination** (automatic on acquiring foreign citizenship) and **Deprivation** (compulsory, by the Centre).

MEMORY HOOK

Claim: acquisition and loss are statutory and time-conditioned. Evidence: □ acquisition by Birth, Descent, Registration, Naturalisation, Incorporation of territory ("BeD RaIN"); □ birth rule tightened — 1950–1987 any parent; from 1987 either parent a citizen; from 2004 both parents (or one citizen + other not an illegal migrant); □ naturalisation needs 12 months' continuous residence + 11 of the preceding 14 years. Significance: □□ "born in India = citizen" is true only for 1950–1987. Caution: □ loss is by Renunciation (voluntary), Termination (automatic on acquiring foreign citizenship) and Deprivation (compulsory, by the Centre).

MUST-KNOW FACTS

1. Claim: the Constitution fixes only who were citizens in 1950 and delegates the rest. **Evidence: Arts 5–11 (Part II)** identify the four classes who became citizens at **commencement (26 Jan 1950)**; **Art 9** bars **dual citizenship** (voluntary foreign citizenship = not an Indian citizen); **Art 11** empowers **Parliament** over all citizenship matters → the **Citizenship Act 1955**. **Significance:** □□ citizenship is therefore mainly **statutory, not a Fundamental Right**. **Caution:** do not call citizenship a Fundamental Right.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.4 Bank A — Constitutional scheme (Arts 5–11) and statutory modes

HIGH

Foundation · 8.5 Bank B — Single citizenship and its exceptions (routed anchors)

GS-II Indian Polity

INTRO & ORIGIN

Claim: single citizenship gives uniform rights, but residence-based distinctions survive. **Evidence:** □ India (like Canada) has **single citizenship** — no separate state citizenship. Exceptions: □ **Art 16(3)** lets Parliament prescribe residence requirements for specified classes of public employment; □ **Art 19(5)** permits restrictions on movement/residence to protect **Scheduled Tribes**; □ **Art 371/371-A to 371-J** give region-specific safeguards (e.g., **371-A Nagaland**, **371-G Mizoram** protect customary law/land; **371-D** local-cadre posts in AP/Telangana). **Significance:** □□ uniformity of citizenship coexists with regional protection. **Caution:** □ these are constitutional special provisions, **not** separate citizenships.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.5 BANK B — SINGLE CITIZENSHIP AND ITS EXCEPTIONS (ROUTED ANCHORS): RECALL MAP

8.5 Bank B — Single citizenship and its exceptions (routed anchors)

V

Dimension 1 Claim: single citizenship gives uniform rights, but residence-based distinctions survive. Evidence: □ India (like Canada) has single citizenship — no	**Dimension 2** Claim: the reason residence benefits are lawful is a precise Art 15 point. Evidence: □ Art 15(1) bars State discrimination on religion, race, caste, s
Dimension 3 Claim: the largest single-citizenship exception has been removed. Evidence: □ till 2019, Art 35A (1954 Presidential Order under Art 370) protected J&K	

STATIC THEORY

- **Claim:** the reason residence benefits are lawful is a precise Art 15 point. **Evidence:** □ **Art 15(1)** bars State discrimination on religion, race, caste, sex and **place of birth** — but **not residence**. **Significance:** □□ States may therefore favour **residents/domiciles** (e.g., fee concessions) without breaching equal citizenship, because "residence" is not a prohibited ground. **Caution:** □ **"place of birth" ≠ "residence"** — discrimination on place of birth remains barred.

- **Claim:** the largest single-citizenship exception has been removed. **Evidence:** □ till 2019, **Art 35A** (1954 Presidential Order under Art 370) protected J&K "permanent residents" in jobs/land; □ abrogated in **2019**, and the **Supreme Court upheld the abrogation in December 2023** (*In re Article 370*). **Significance:** □□ J&K residents now stand under the general constitutional scheme, with statutory domicile rules. **Caution:** □ do **not** describe Art 35A permanent-resident privileges as current.

MUST-KNOW FACTS

1. Claim: single citizenship gives uniform rights, but residence-based distinctions survive. **Evidence:** India (like Canada) has **single citizenship** — no separate state citizenship. Exceptions: **Art 16(3)** lets Parliament prescribe residence requirements for specified classes of public employment; **Art 19(5)** permits restrictions on movement/residence to protect **Scheduled Tribes**; **Art 371/371-A to 371-J** give region-specific safeguards (e.g., **371-A Nagaland**, **371-G Mizoram** protect customary law/land; **371-D** local-cadre posts in AP/Telangana). **Significance:** □□ uniformity of citizenship coexists with regional protection. **Caution:** these are constitutional special provisions, **not** separate citizenships.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.5 Bank B — Single citizenship and its exceptions (routed anchors)

HIGH

Foundation · 8.6 Bank C — OCI, CAA 2019 and the domicile distinction

GS-II Indian Polity

INTRO & ORIGIN

Claim: OCI is statutory engagement, not citizenship. **Evidence:** □ **L.M. Singhvi Committee → Citizenship (Amendment) Act 2003** created OCI; **2015 Amendment** merged **PIO + OCI**; □ OCI cardholders **cannot vote, contest, hold constitutional office (President/VP/judge/MP/MLA) or claim public-employment equality**. **Significance:** □□ OCI is **not dual citizenship** (Art 9 bars it). **Caution:** □ OCI is a **statutory** status, cancellable for fraud/disaffection.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.6 BANK C — OCI, CAA 2019 AND THE DOMICILE DISTINCTION: RECALL MAP

8.6 Bank C — OCI, CAA 2019 and the domicile distinction

V

Dimension 1 Claim: OCI is statutory engagement, not citizenship. Evidence: □ L.M. Singhvi Committee → Citizenship (Amendment) Act 2003 created OCI; 2015 Amendment	**Dimension 2** Claim: the CAA 2019 is a religion-specified facilitation, and its validity is contested. Evidence: □ it offers a facilitated naturalisation route (res
Dimension 3 Claim: citizenship, domicile and residence are three distinct statuses. Evidence: □ Citizenship = full legal membership (Arts 5–11 + 1955 Act), carryi	

STATIC THEORY

- **Claim:** the CAA 2019 is a religion-specified facilitation, and its validity is contested. **Evidence:** □ it offers a **facilitated naturalisation route (residence cut to 5 years)** for **Hindu, Sikh, Buddhist, Jain, Parsi, Christian** migrants from **Pakistan, Bangladesh, Afghanistan** who entered **on or before 31 December 2014**; □ **rules notified March 2024, first certificates issued May 2024**. **Significance:** □□ **criticism** — a religion-based classification excluding Muslims allegedly violates **Art 14** and secularism, with NRC-linkage fears; □□ **defence** — it is an under-inclusive facilitation for persecuted minorities of three neighbours, strips **no** citizen's status, and grants **no automatic citizenship** (statutory scrutiny remains). **Caution:** □ a constitutional challenge (Art 14) was **pending** before the Supreme Court on the record held here (status as of 13 August 2026); do not state it has been struck down or finally upheld.

- **Claim:** citizenship, domicile and residence are three distinct statuses. **Evidence:** □ **Citizenship** = full legal membership (Arts 5–11 + 1955 Act), carrying **political rights**; □□ **Domicile** = the legal system a person treats as permanent home (India has a single **domicile of India**; "domicile in India" was a condition for Art 5 citizenship at commencement); □□ **Residence** = factual ordinary residence, the basis for **electoral registration** in a constituency and for residence-based state benefits. **Significance:** □□ only citizenship confers the vote and eligibility for office; residence/domicile do not. **Caution:** □ do not equate long residence or domicile with citizenship.

MUST-KNOW FACTS

1. Claim: OCI is statutory engagement, not citizenship. **Evidence: L.M. Singhvi Committee → Citizenship (Amendment) Act 2003** created OCI; **2015 Amendment** merged **PIO + OCI**; OCI cardholders **cannot vote, contest, hold constitutional office (President/VP/judge/MP/MLA) or claim public-employment equality**. **Significance:** □□ OCI is **not dual citizenship** (Art 9 bars it). **Caution:** OCI is a **statutory** status, cancellable for fraud/disaffection.

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MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.6 Bank C — OCI, CAA 2019 and the domicile distinction

HIGH

Foundation · 8.7 Mechanism, incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

□□ **Fraternity mechanism:** single citizenship removes inter-state citizenship barriers, incentivising a national labour market and identity; the safety valve is the Art 16(3)/371 residence protections for vulnerable regions.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.7 MECHANISM, INCENTIVES AND CONSEQUENCES: RECALL MAP

8.7 Mechanism, incentives and consequences

V

Dimension 1 □□ Fraternity mechanism: single citizenship removes inter-state citizenship barriers, incentivising a national labour market and identity; the safety	**Dimension 2** □□ Who gains, who loses: single citizenship benefits inter-state migrants and national integration, while the residence and tribal-area exceptions (Ar
Dimension 3 □□ CAA design consequence: by keying eligibility to religion + country + date, the Act creates an intelligible differentia its defenders call reasonab	

STATIC THEORY

- □□ **Who gains, who loses:** single citizenship benefits inter-state migrants and national integration, while the **residence and tribal-area exceptions** (Arts 16(3), 19(5), 371) protect locals and vulnerable regions from being outcompeted.

- □□ **CAA design consequence:** by keying eligibility to religion + country + date, the Act creates an intelligible differentia its defenders call reasonable and its critics call a religious test — the crux of the Art 14 litigation.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.7 Mechanism, incentives and consequences

HIGH

Foundation · 8.8 Criticism, counter-argument and variation

GS-II Indian Polity

INTRO & ORIGIN

□□ **OCI critique:** OCI expands diaspora ties and soft power but withholds political rights, which some see as second-class status and others as the necessary consequence of Art 9.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.8 CRITICISM, COUNTER-ARGUMENT AND VARIATION: RECALL MAP

8.8 Criticism, counter-argument and variation

V

Dimension 1 □□ OCI critique: OCI expands diaspora ties and soft power but withholds political rights, which some see as second-class status and others as the nece	**Dimension 2** □□ Counter-argument on the CAA: defenders frame it as a narrow humanitarian facilitation for persecuted minorities of three theocratic-majority neighb
Dimension 3 □□ Regional variation: citizenship politics differ sharply — Assam turns on the NRC and the 1971 cut-off, while the CAA debate is nationwide; the same	

STATIC THEORY

- □□ **Counter-argument on the CAA:** defenders frame it as a narrow humanitarian facilitation for persecuted minorities of three theocratic-majority neighbours; critics say using **religion** as a criterion breaches Art 14 secularism — the dispute the Supreme Court must resolve.

- □□ **Regional variation:** citizenship politics differ sharply — **Assam** turns on the NRC and the 1971 cut-off, while the CAA debate is nationwide; the same statutory framework produces different flashpoints by region.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.8 Criticism, counter-argument and variation

HIGH

Foundation · 8.9 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Single-citizenship verdict: "Single citizenship builds one nation without erasing regional protection: uniform political membership coexists with residence- and tribe-based safeguards under Articles 16(3), 19(5) and 371."

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.9 VERDICT SCAFFOLDS: RECALL MAP

8.9 Verdict scaffolds

V

Dimension 1 Single-citizenship verdict: "Single citizenship builds one nation without erasing regional protection: uniform political membership coexists with resi	**Dimension 2** CAA verdict: "The CAA's fate rests on Article 14: whether persecuted-minority facilitation is a reasonable classification or an impermissible religiou
Dimension 3 Distinction verdict: "Citizenship is membership, domicile is legal home, residence is a fact of location; only the first carries the vote, and conflat	

STATIC THEORY

- **CAA verdict:** "The CAA's fate rests on Article 14: whether persecuted-minority facilitation is a reasonable classification or an impermissible religious criterion — a question the Supreme Court, not the statute's title, will settle."

- **Distinction verdict:** "Citizenship is membership, domicile is legal home, residence is a fact of location; only the first carries the vote, and conflating them is the error the Constitution's single-citizenship design guards against."

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.9 Verdict scaffolds

HIGH

Foundation · 8.10 Prelims close-option distinctions (answers the routed objective demand)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 8.10 Prelims close-option distinctions (answers the routed objective demand).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Routed 2021 Prelims GS-I Q89 — citizenship, domicile and deprivation: □ ***Deprivation*** *is* ***compulsory loss ordered by the Central Government*** *— for fraud in registration/naturalisation, disloyalty/disaffection to the Constitution, unlawful trading/communicating with the enemy in war, a* ***2-year imprisonment within 5 years*** *of registration/naturalisation, or* ***7 years' continuous residence abroad****; it applies to* ***registered/naturalised*** *citizens.* □ ***Domicile in India*** *was a condition for citizenship at commencement (Art 5); India has* ***single citizenship*** *with no separate state citizenship.* ***Renunciation vs Termination vs Deprivation:*** □ *Renunciation =* ***voluntary declaration****; Termination =* ***automatic*** *on acquiring foreign citizenship; Deprivation =* ***compulsory by the Centre****.* ***OCI vs dual citizenship:*** □ *OCI is* ***not*** *dual citizenship (Art 9 bars it); OCI cannot vote or hold constitutional office.* ***NRC vs CAA cut-offs:*** □ ***Assam NRC = 24 March 1971*** *(Assam Accord);* □ ***CAA = 31 December 2014****.* ***Citizenship as a right:*** □ *citizenship is* ***not a Fundamental Right****; it is governed by ordinary law under* ***Art 11****.*

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.10 Prelims close-option distinctions (answers the routed objective demand)

HIGH

Foundation · 8.11 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

Do **not** say India allows **dual citizenship** via OCI — □ **Art 9 bars** dual citizenship; OCI ≠ citizenship. Do **not** say the CAA grants **automatic** citizenship by community/origin — □ statutory eligibility, application and scrutiny remain. □ Do **not** state the CAA has been **struck down or conclusively upheld** — a challenge on Art 14 grounds was **pending** before the Supreme Court on the record held here (status as of 13 August 2026).

INTRO & ORIGIN

Do **not** conflate the **NRC cut-off (24 March 1971)** with the **CAA cut-off (31 December 2014)**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

8.11 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

8.11 Factual-risk and current-status controls

V

Dimension 1 Do not conflate the NRC cut-off (24 March 1971) with the CAA cut-off (31 December 2014).	**Dimension 2** Do not call citizenship a Fundamental Right — □ it is governed by the Citizenship Act 1955 under Art 11.
Dimension 3 Do not describe Art 35A J&K permanent-resident privileges as current — □ abrogated in 2019 (abrogation upheld by the Supreme Court in December 2023).	**Dimension 4** Do not say "born in India = automatic citizen" without qualification — □ true only for 1950–1987; tightened in 1987 and 2004.

STATIC THEORY

- Do **not** call citizenship a **Fundamental Right** — □ it is governed by the **Citizenship Act 1955** under **Art 11**.

- Do **not** describe **Art 35A** J&K permanent-resident privileges as current — □ abrogated in **2019** (abrogation upheld by the Supreme Court in **December 2023**).

- Do **not** say "born in India = automatic citizen" without qualification — □ true only for **1950–1987**; tightened in **1987** and **2004**.

- less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -→

MUST-KNOW FACTS

1. Do **not** call citizenship a **Fundamental Right** — it is governed by the **Citizenship Act 1955** under **Art 11**.

2. Do **not** describe **Art 35A** J&K permanent-resident privileges as current — abrogated in **2019** (abrogation upheld by the Supreme Court in **December 2023**).

3. Do **not** say "born in India = automatic citizen" without qualification — true only for **1950–1987**; tightened in **1987** and **2004**.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → 8.11 Factual-risk and current-status controls

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2021	Prelims GS-I	89	Citizenship domicile and deprivation provisions India	Objective question; official key unavailable locally	Routed; key unavailable locally	Cover the named fact/concept and its likely statement-level distinctions.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-PRELIMS-2018-2023.md.* ***Answer-key rule:*** *The official 2018-2023 Prelims/CSAT keys are not held locally; no option or answer has been inferred.* ***Years represented:*** *2021* ***Paper(s):*** *Prelims GS-I* ***Routed question demands:*** *1*

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Foundation · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

Citizenship domicile and deprivation provisions India

Foundation learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 Citizenship domicile and deprivation provisions India	**Dimension 2** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→	

STATIC THEORY

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → What this owner must now support

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional settlement: *Part II is Articles 5-11 and identifies citizens at commencement. Article 5 requires domicile plus birth, parental birth or five years' ordinary residence; Articles 6-7 use the exact 19 July 1948 and 1 March 1947 migration divisions; Article 8 covers qualifying Indian-origin persons abroad registered by a diplomatic or consular representative.* ***Articles 9-11 precision:*** *Article 9 denies citizenship by virtue of Articles 5, 6 or 8 after voluntary acquisition of foreign citizenship; Article 10 continues citizenship subject to parliamentary law; Article 11 preserves Parliament's plenary citizenship power. Do not convert Article 9 alone into a complete permanent-code proposition.* ***Statutory architecture:*** *Citizenship Act, 1955 acquisition is by birth, descent, registration, naturalisation and incorporation of territory. Loss is by renunciation, termination and deprivation; deprivation is category-limited and cannot be described as a general executive cancellation power.* ***Section 6A:*** *retain the 1 January 1966 and 25 March 1971 bands, the ten-year electoral consequence for the middle cohort, the Assam-specific boundary and the 17 October 2024 four-to-one judgment upholding the provision, followed by implementation monitoring.* ***OCI and CAA:*** *OCI under Sections 7A-7D is not citizenship or a constitutional right. Section 6B/CAA covers six named communities from Afghanistan, Bangladesh and Pakistan entering on or before 31 December 2014, subject to statutory application and scrutiny; protected tribal/Inner Line areas remain excluded.* ***Current procedural control:*** *the 2024 Rules operationalised Section 6B. G.S.R. 742(E) and S.O. 4583(E), both 19 August 2026, move specified applications to the jurisdictional Collector and transfer pending files; they do not alter the statutory class or cut-off.* ***Immigration boundary:*** *the Immigration and Foreigners Act/Exemption Order, 2025 concerns entry-document liability and uses a 31 December 2024 date for the notified exemption. It neither grants citizenship nor changes the CAA's 2014 cut-off.* ***Four-ledger hostile audit:*** *constitutional text, indispensable statutory rules, textbook taxonomy and all routed 2018-2026 PYQs were checked for dates, categories, exceptions, proof documents, legal consequence and current status.* ***Verified PYQ ownership, 2018-2026:*** *direct 2021 Prelims Q89; 2018 Aadhaar citizenship-proof is retained only as a disclosed cross-topic route. No direct Mains question or unavailable official key is fabricated.*

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 6 / Part II (direct check of the local Sixth Revised Edition PDF) + official update.
Dimension 3 □ = from source book · □□ = inference / post-book · □ = current affairs.	**Dimension 4** Companion: basic/Citizenship.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 6 / Part II (direct check of the local Sixth Revised Edition PDF) + official update.

- □ = from source book · □□ = inference / post-book · □ = current affairs.

- *Companion: basic/Citizenship.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / post-book · □ = current affairs.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · Citizen vs alien

GS-II Indian Polity

INTRO & ORIGIN

□ India has **citizens** (full members, all civil + political rights, owe allegiance) and **aliens** (citizens of another state). Aliens = **friendly** (cordial-relation countries) or **enemy** (country at war with India). Article **22(3)(a)** excludes enemy aliens from clauses **22(1)-(2)**; it is inaccurate to erase Article 22 wholesale.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ **Rights available ONLY to citizens** (denied to aliens): Art **15** (non-discrimination), Art **16** (equality in public employment), Art **19** (six freedoms), Art **29** (citizen-specific cultural protection), while Art **30** speaks textually of minorities rather than citizens; right to **vote** (LS + state assembly), right to **contest** Parliament/state legislature, eligibility for **high offices** (President, VP, SC/HC judges, Governor, AG, Advocate General). □ In India **both birth & naturalised** citizens can be President (in USA, only birth citizen).

MUST-KNOW FACTS

1. India has **citizens** (full members, all civil + political rights, owe allegiance) and **aliens** (citizens of another state). Aliens = **friendly** (cordial-relation countries) or **enemy** (country at war with India). Article **22(3)(a)** excludes enemy aliens from clauses **22(1)-(2)**; it is inaccurate to erase Article 22 wholesale.

2. Rights available ONLY to citizens (denied to aliens): Art **15** (non-discrimination), Art **16** (equality in public employment), Art **19** (six freedoms), Art **29** (citizen-specific cultural protection), while Art **30** speaks textually of minorities rather than citizens; right to **vote** (LS + state assembly), right to **contest** Parliament/state legislature, eligibility for **high offices** (President, VP, SC/HC judges, Governor, AG, Advocate General). In India **both birth & naturalised** citizens can be President (in USA, only birth citizen).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Citizen vs alien

HIGH

Advanced · Constitutional provisions (Art 5–11, Part II)

GS-II Indian Polity

INTRO & ORIGIN

 Constitution has **neither permanent nor elaborate** citizenship provisions — it only identifies who were citizens **at commencement (26 Jan 1950)**. It leaves acquisition/loss thereafter to **Parliament → Citizenship Act 1955**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Constitution has **neither permanent nor elaborate** citizenship provisions — it only identifies who were citizens **at commencement (26 Jan 1950)**. It leaves acquisition/loss thereafter to **Parliament → Citizenship Act 1955**.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Constitutional provisions (Art 5–11, Part II)

HIGH

Advanced · Four categories who became citizens on 26 Jan 1950

GS-II Indian Polity

INTRO & ORIGIN

 (a) **domiciled** persons (born in India / a parent born in India / ordinarily resident 5 yrs); (b) persons who **migrated from Pakistan**; (c) persons who **migrated to Pakistan but returned** for resettlement; (d) **persons of Indian origin residing outside India** (registered by Indian consulate). **Art 9:** voluntarily acquiring a **foreign citizenship** = **not** an Indian citizen (no dual citizenship). Art 10 (continuance), Art 11 (Parliament's power over all citizenship matters).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. (a) **domiciled** persons (born in India / a parent born in India / ordinarily resident 5 yrs); (b) persons who **migrated from Pakistan**; (c) persons who **migrated to Pakistan but returned** for resettlement; (d) **persons of Indian origin residing outside India** (registered by Indian consulate). **Art 9:** voluntarily acquiring a **foreign citizenship** = **not** an Indian citizen (no dual citizenship). Art 10 (continuance), Art 11 (Parliament's power over all citizenship matters).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Four categories who became citizens on 26 Jan 1950

HIGH

Advanced · Citizenship Act 1955 — Acquisition (5 ways) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Mode	Key rule
□ **Birth**	Born in India **26 Jan 1950–1 Jul 1987**: citizen *irrespective of parents*. **On/after 1 Jul 1987**: if **either parent** is a citizen. **On/after 3 Dec 2004**: **both parents** citizens, OR one citizen & other **not an illegal migrant**. (Children of foreign diplomats & enemy aliens excluded.)
□ **Descent**	Born outside India, **before 10 Dec 1992**: if **father** was a citizen. **On/after 10 Dec 1992**: if **either parent**. **From 3 Dec 2004**: birth must be **registered at Indian consulate within 1 year**.
□ **Registration**	For PIOs / spouse of citizen (**7 yrs** ordinary residence), minor children, OCI-cardholder of 5 yrs, etc. Oath of allegiance required.
□ **Naturalisation**	For an alien (not illegal migrant): **12 months** continuous residence just before application + **11 of the preceding 14 years**; good character; knows an **8th-Schedule language**. Govt may **waive** all conditions for **distinguished service** to science/art/peace etc.
□ **Incorporation of territory**	Govt specifies citizens of newly-added territory (e.g. **Citizenship (Pondicherry) Order 1962**).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Citizenship Act 1955 — Acquisition (5 ways) □

HIGH

Advanced · Citizenship Act 1955 — Acquisition (5 ways) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Assam Accord special provision (Citizenship Amendment Act 1985):** persons who came from Bangladesh to Assam **before 1 Jan 1966** → deemed citizens from that date; those **1 Jan 1966–24 Mar 1971** register & become citizens after **10 yrs** from detection (no vote in interim). □ (Basis of the **NRC** cut-off of **24 March 1971**.)

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Assam Accord special provision (Citizenship Amendment Act 1985): persons who came from Bangladesh to Assam **before 1 Jan 1966** → deemed citizens from that date; those **1 Jan 1966–24 Mar 1971** register & become citizens after **10 yrs** from detection (no vote in interim). □ (Basis of the **NRC** cut-off of **24 March 1971**.)

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Citizenship Act 1955 — Acquisition (5 ways) □

HIGH

Advanced · Loss of citizenship (3 ways) □

GS-II Indian Polity

INTRO & ORIGIN

□ **Renunciation** (voluntary declaration; minor children also lose it, may resume at 18); **Termination** (automatic on voluntarily acquiring foreign citizenship); **Deprivation** (compulsory by Centre — fraud, disloyalty, trading with enemy in war, 2-yr imprisonment within 5 yrs of registration/naturalisation, or 7 yrs continuous residence abroad).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Renunciation (voluntary declaration; minor children also lose it, may resume at 18); **Termination** (automatic on voluntarily acquiring foreign citizenship); **Deprivation** (compulsory by Centre — fraud, disloyalty, trading with enemy in war, 2-yr imprisonment within 5 yrs of registration/naturalisation, or 7 yrs continuous residence abroad).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Loss of citizenship (3 ways) □

HIGH

Advanced · Single citizenship □

GS-II Indian Polity

INTRO & ORIGIN

 Despite a federal dual polity, India (like **Canada**) has **single citizenship** — no separate state citizenship; all citizens owe allegiance only to the Union. USA & Switzerland have **double citizenship**. Aim: fraternity, unity, integrated nation. **Exceptions to uniform rights:** (1) Art 16(3) permits Parliament to prescribe residence qualifications for specified public employment; (2) states may give residents concessions outside constitutional rights (e.g. education fees); (3) Art 19 restricted to protect **STs / tribal areas**; (4) *till 2019* J&K permanent-resident privileges under **Art 35A** (inserted by 1954 Presidential Order under Art 370; **abolished 2019**).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Despite a federal dual polity, India (like **Canada**) has **single citizenship** — no separate state citizenship; all citizens owe allegiance only to the Union. USA & Switzerland have **double citizenship**. Aim: fraternity, unity, integrated nation. **Exceptions to uniform rights:** (1) Art 16(3) permits Parliament to prescribe residence qualifications for specified public employment; (2) states may give residents concessions outside constitutional rights (e.g. education fees); (3) Art 19 restricted to protect **STs / tribal areas**; (4) *till 2019* J&K permanent-resident privileges under **Art 35A** (inserted by 1954 Presidential Order under Art 370; **abolished 2019**).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Single citizenship

HIGH

Advanced · Overseas Citizenship of India (OCI)

GS-II Indian Polity

INTRO & ORIGIN

 L.M. Singhvi High-Level Committee on Indian Diaspora (2000, report 2002) → **Citizenship (Amdt) Act 2003** created **OCI** for PIOs of 16 countries (except Pakistan & Bangladesh) and repealed Commonwealth citizenship. **2005 Amdt** widened it to PIOs of all countries (except Pak/Bangladesh). **2015 Amdt** merged **PIO + OCI** into a single **"OCI Cardholder"** scheme. **OCI is NOT dual citizenship** (Article 9 directly disqualifies specified commencement claims after voluntary foreign citizenship; the present no-dual-citizenship result also depends on the Citizenship Act, especially Section 9). OCI cardholders **cannot**: vote, become President/VP/SC-HC judge, become MP/MLA, get public employment, or equality of opportunity in public jobs. Registration cancellable for fraud/disaffection/trading with enemy.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. L.M. Singhvi High-Level Committee on Indian Diaspora (2000, report 2002) → **Citizenship (Amdt) Act 2003** created **OCI** for PIOs of 16 countries (except Pakistan & Bangladesh) and repealed Commonwealth citizenship. **2005 Amdt** widened it to PIOs of all countries (except Pak/Bangladesh). **2015 Amdt** merged **PIO + OCI** into a single **"OCI Cardholder"** scheme. **OCI is NOT dual citizenship** (Article 9 directly disqualifies specified commencement claims after voluntary foreign citizenship; the present no-dual-citizenship result also depends on the Citizenship Act, especially Section 9). OCI cardholders **cannot**: vote, become President/VP/SC-HC judge, become MP/MLA, get public employment, or equality of opportunity in public jobs. Registration cancellable for fraud/disaffection/trading with enemy.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Overseas Citizenship of India (OCI)

HIGH

Advanced · □ CA anchor — Citizenship (Amendment) Act, 2019 □□

GS-II Indian Polity

INTRO & ORIGIN

□ □ **CAA 2019** offers a **facilitated application route** for **six communities — Hindu, Sikh, Buddhist, Jain, Parsi, Christian** — from **Pakistan, Bangladesh, Afghanistan** who entered India **on or before 31 December 2014** (naturalisation residence cut to **5 years**). Muslims and other countries excluded — hence the equality/secularism (Art 14) debate. □ **Rules notified March 2024**; **first citizenship certificates granted May 2024** (online portal). The Act does **not grant automatic citizenship** merely by community/origin; the applicant must satisfy the statutory route and scrutiny. □□ Constitutional challenges remain pending on the official record checked through **28 August 2026**. Under G.S.R. 742(E) and S.O. 4583(E), both **19 August 2026**, specified Section 6B applicants in Gujarat, Rajasthan, Punjab, West Bengal, non-tribal Assam/Tripura, J&K and Ladakh apply electronically to the jurisdictional Collector; pending committee applications transfer to that Collector. The change is procedural and does not alter the six-community, three-country or 31 December 2014 class.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. □ **CAA 2019** offers a **facilitated application route** for **six communities — Hindu, Sikh, Buddhist, Jain, Parsi, Christian** — from **Pakistan, Bangladesh, Afghanistan** who entered India **on or before 31 December 2014** (naturalisation residence cut to **5 years**). Muslims and other countries excluded — hence the equality/secularism (Art 14) debate. □ **Rules notified March 2024**; **first citizenship certificates granted May 2024** (online portal). The Act does **not grant automatic citizenship** merely by community/origin; the applicant must satisfy the statutory route and scrutiny. □□ Constitutional challenges remain pending on the official record checked through **28 August 2026**. Under G.S.R. 742(E) and S.O. 4583(E), both **19 August 2026**, specified Section 6B applicants in Gujarat, Rajasthan, Punjab, West Bengal, non-tribal Assam/Tripura, J&K and Ladakh apply electronically to the jurisdictional Collector; pending committee applications transfer to that Collector. The change is procedural and does not alter the six-community, three-country or 31 December 2014 class.

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → □ CA anchor — Citizenship (Amendment) Act, 2019 □□

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: Constitution has detailed permanent citizenship provisions

CORRECT: only **who were citizens in 1950**; rest is by **Parliament (Citizenship Act 1955)**.

WRONG: India allows dual citizenship via OCI

CORRECT: Art 9 forbids dual citizenship; OCI ≠ citizenship.

WRONG: Anyone born in India is automatically a citizen

CORRECT: true only **1950–1987**; tightened in 1987 & 2004.

WRONG: Naturalisation needs 5 years

CORRECT: 11 of preceding 14 years + 12 months continuous.

WRONG: Citizenship is a Fundamental Right

CORRECT: it is **not**; governed by ordinary law (Art 11).

WRONG: CAA grants citizenship to all migrants

CORRECT: only **6 named communities** from **3 countries**, cut-off **31 Dec 2014**.

WRONG: NRC cut-off is 2014

CORRECT: Assam NRC cut-off is **24 March 1971** (Assam Accord).

MAINS ANGLE

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

CAA 2019 and the secular-citizenship debate — does a religion-based fast-track violate Art 14? Single citizenship vs demands for domicile-based reservations/jobs — unity vs regional aspiration. OCI: soft power and diaspora engagement without political rights.

STUDY LINK

Citizenship (Articles 5–11) — ADVANCED / COMPLETE → Mains angles

End of Register Notes - UPSC Agent / Copilot CLI